IN THE HIGH COURT OF JUDICATURE AT PATNA
CRIMINAL MISCELLANEOUS No.70769 of 2026
CNR No. BRHC010996952026
Arising Out of PS. Case No.-86 Year-2023 Thana- KHANPURA District- Samastipur

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Brajesh Kumar Sahni @ Brijesh Sahni @ Brijesh Kumar Sahni Son of Arun Sahni @ Arun Sahani Resident of Village- Khanjapur, P.S.- Khanpur, District- Samastipur

... ... Petitioner/s

Versus

1. The State of Bihar
2. X Son of Late Ramji Paswan Resident of Village- Khanjapur, P.S.- Khanpur, District- Samastipur

... ... Opposite Party/s

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Appearance :
For the Petitioner/s : Mr. Mahendra Pratap, Advocate
For the Opposite Party/s : Mr. Pramod Kumar Pandey, A.P.P.

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CORAM: HONOURABLE MR. JUSTICE PRABHAT KUMAR SINGH

ORAL ORDER

2 15-10-2026 Heard learned counsel for the petitioner and learned A.P.P. for the State.

2. The petitioner seeks bail in Khanpur P.S. Case No. 86/2023, registered for offence under Section Sections 363, 366(A), 376(DA), 34 of the Indian Penal Code, Sections 4, 6, 8, 12 of the POCSO Act and Section 3(2)(v) of the SC/ST Act.

3. The prosecution case, in brief, is that on 06.04.2023, at about 3:00 P.M., the informant alleged that his 12-year-old granddaughter was abducted by his neighbour, Bhavishya Kumar Sahni, along with Brijesh Kumar Sahni @Bijesh Sahni (petitioner) and Kamaldev Kumar Sahni, all residents of the same village. The informant searched for the minor girl at the houses of his relatives, but could not trace her.

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4. During investigation, the victim was recovered and her statement was recorded under Section 164 of Cr.P.C. wherein she stated that all the accused persons including this petitioner kidnapped her, brought her to Ludhiana and thereafter, committed gang rape with her. Victim is minor.

5. Considering the nature of accusation, the prayer for bail of petitioner is rejected. However, since petitioner is in custody since 01.07.2026, the learned Trial Court is directed to expedite the trial.

(Prabhat Kumar Singh, J.)

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